IN THE HIGH COURT OF JUDICATURE AT PATNA

Civil Writ Jurisdiction Case No.8890 of 2026

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Yashwant Kumar @ Yaswant Kumar @ Yasvant Kumar Aadhar No. 4245 8060 8331 Son of Ram Kripal Yadav @ Ramkripal yadav @ Ram Kripalu Yadav resident of ward no 6 Village Khumbhi, Post Khumbhi, Police Station Cheria Bariyarpur, Circle Cheria Bariyarpur, Subdivision Manjhaul District Begusarai Bihar, Pin Code 848202.

... ... Petitioner/s

Versus

1. The State of Bihar through the Chief Secretary, Government of Bihar.
2. The Chief Secretary, Cabinet Secretariat Department, Government of Bihar.
3. The Additional Chief Secretary, Revenue and Land Reforms Department. Government of Bihar.
4. The Secretary Revenue and Land Reforms Department, Government of Bihar, Patna, Bihar.
5. The Additional Chief Secretary, Department of Home, Government of Bihar, Sardar Patel Bhawan Nehru Marg Patna Bihar.
6. The Director General of Police, Police Head Quarter, Sardar Patel Bhawan Nehru Marg Patna Bihar.
7. The Director General of Police, Bihar Special Armed Police (BSAP), Sardar Patel Bhawan Nehru Marg Patna Bihar.
8. The Additional Director General of Police, (Legal, Budget) Sardar Patel Bhawan Nehru Marg Patna Bihar
9. The Additional Director General of Police, Bihar Special Armed Police (BSAP), Sardar Patel Bhawan Nehru Marg Patna Bihar.
10. The Inspector General of Police, Bihar Special Armed Police (BSAP) Sardar Patel Bhawan Nehru Marg Patna Bihar.
11. The Deputy Inspector General of Police, Bihar Special Armed Police (BSAP) Muzaffarpur Bihar.
12. The Director, Land Records and Survey, Revenue and Land Reforms Department, Government of Bihar, Patna.
13. The Principal Accountant General (Audit), Bihar Mahalekhakar Bhawan, Birchand Patel Marg, R-Block, Patna, Bihar - 800001.
14. The Accountant General, HOD/AG (Audit-II). Mahalekhakar Bhawan, Birchand Patel Marg, 'R'-Block, Patna, Bihar - 800 001.
15. The Internal Financial Adviser, office of Principal Accountant General (Audit), Bihar Mahalekhakar Bhawan, Birchand Patel Marg, R-Block, Patna, Bihar - 800001.
16. The Divisional Commissioner, Munger Division, Bihar.
17. The Collector cum District Magistrate Begusarai, Bihar.
18. The Superintendent of Police, Begusarai Bihar.
19. The Commandant Bihar Special Armed Police 19 Town ship Refinery

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Begusarai.

20. The Deputy Commandant (Legal) Bihar Special Armed Police 19 Town ship Refinery Begusarai.
21. The Dy.S.P (Admin cum Legal) Bihar Special Armed Police 19 Town ship Refinery Begusarai.
22. The Hawaladar Major New Construction In-charge BSAP 19 Begusarai Bihar.
23. The Additional Collector (Revenue) Begusarai Bihar.
24. The Sub Divisional Officer Manjhaul, Begusarai Bihar.
25. The Sub Divisional Police Officer (SDPO) Manjhaul, Begusarai Bihar.
26. The Deputy Collector Land Reform Manjhaul, Begusarai Bihar.
27. The Circle Officer Cheria Bariyarpur, Begusarai, Bihar.
28. The Station House Officer Police Station, Cheria Bariyarpur, Begusarai, Bihar.

... ... Respondent/s

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Appearance :

For the Petitioner/s	:	Mr. Rohit Kumar, Advocate
	:	Mr. Manish Kumar No. 13, Advocate
For the State	:	Mr. Government Advocate (2)
For the Accountant General	:	Mr. Arun Kumar Arun, Advocate

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CORAM: HONOURABLE MR. JUSTICE RAJIV ROY

ORAL ORDER

3 10-08-2026 Heard the parties.

2. The present petition has been preferred for the grant of following relief(s):

"(i) for issuance of direction (s), order(s) or writ(s) in the nature of Mandamus commanding the respondent authorities to forthwith desist, restrain, prohibit, and forbear from taking possession or commencing any construction over 33.44 acres of Raiyati Land situated at Mouza Sonvarsha, Thana No. 80, Anchal

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Cheriyabariarpur, Sub-Division Manjhaul, District Begusarai, comprised in Khata Nos. 90 and 168, Khesra Nos. 448, 501, 497, 502, 518, 503/618 and 911, without following the due process of law and the mandatory procedure prescribed under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (2013 Act), and to ensure that no coercive or unlawful steps are taken in derogation of statutory safeguards.

(ii) for setting aside the Cabinet Decision dated 08.07.2025, Agenda Item No. 20, (Annexure P2) whereby approval was granted for permanent inter-departmental transfer of 33.44 acres of Raiyati Land situated at Mouza Sonvarsha, Thana No. 80, Anchal Cheriyabariarpur, Sub-Division Manjhaul, District Begusarai, comprised in Khata Nos. 90 and 168, Khesra Nos. 448, 501, 497, 502, 518, 503/618 and 911. in favour of the Home Department, Bihar, for establishment of Bihar

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Special Armed Police-19 Battalion, as being arbitrary, ultra vires, unconstitutional, colourable exercise of power and void ab initio as well as violative of Articles 14 and 300A of the Constitution of India.

*(iii) for setting aside the impugned Government Order bearing Memo No. 06/*ख०म० बेगूसराय *(भू०हस्ता0)-58/2025 issued by the Department of Revenue and Land Reforms, Bihar dated 08.07.2025. (Annexure P 3) whereby 33.44 acres of Raiyati land situated at Mouza Sonvarsha, Thana No. 80, Anchal Cheriyabariarpur, Sub-Division Manjhaul, District Begusarai, comprised in Khata Nos. 90 and 168, Khesra Nos. 448, 501, 497, 502, 518, 503/618 and 911, has been approved for permanent inter-departmental transfer to the Home Department for establishment of Bihar Special Armed Police-19 Battalion, as the same is manifestly arbitrary, patently ultra vires, and violative of the constitutional guarantees under Articles 14 and 300A of the Constitution of*

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India, being passed without jurisdiction, without adherence to mandatory statutory procedure, and without affording opportunity of hearing to the lawful raiyats in possession,

(iv) for quashing and cancelling the Jamabandi Entry bearing Computerized Jamabandi No. 191130700071016, Part 17, Page 78, (Annexure P 4) relating to Mouza Sonvarsha, Thana No. 80, Anchal Cheriyabariarpur, Sub-Division Manjhaul, District Begusarai, over Khata Nos. 90 and 168, Khesra Nos. 448, 501, 497, 502, 518, 503/618 and 911, measuring 33.44 acres of Raiyati Land, which has been illegally mutated and recorded in favour of Bihar Special Armed Police-19, GoB-Home Department, Cheriyabariarpur, Begusarai, as being a manifest abuse of executive power, patently void, colourable exercise of jurisdiction, and a flagrant violation of the inviolable principles of property rights and rule of law.

(v) for quashing and setting aside the

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Order dated 07.07.2025 passed in Jamabandi Cancellation Case No. JBCA-273/2024-25, (Annexure P9) whereby Long standing Jamabandi No. 1009 corresponding to Computerized Jamabandi No. 191130700047967, Bhag 7, Page 1009, Long standing in the name of the Petitioner, has been annulled by the Additional Collector, Revenue, Begusarai, without affording any opportunity of hearing; and further quashing and setting aside the Recommendation No. 03/2024-25 contained in Letter No. 56 dated 20.02.2025 issued under the signature of the Deputy Collector, Land Reforms, Manjhaul, Begusarai, purporting to cancel the aforesaid Jamabandi, as being ultra vires, arbitrary, void ab initio, procedurally infirm, and in flagrant violation of the principles of natural justice.

(vi) for commanding the respondent authorities to forthwith restrain and stop the ongoing illegal construction of the proposed building of Bihar Special Armed Police-19 at

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Mouza Sonvarsha, Thana No. 80, Anchal Cheriyabariarpur, Sub-Division Manjhaul, District Begusarai, over Khata Nos. 90 and 168, Khesra Nos. 448, 501, 497, 502, 518, 503/618 and 911, measuring 33.44 acres of Raiyati Land, and to take all appropriate steps to ensure that no further construction activity is carried out upon the said land pending adjudication of the present writ petition.

(vii) for commanding the respondent authorities, in particular the Principal Accountant General, Bihar, to forthwith withhold, suspend, enjoin, and interdict the release, sanction, or disbursement of any financial allocation, grant, or fund towards the proposed construction or any ancillary activity of Bihar Special Armed Police-19 over the disputed 33.44 acres of land situated at Mouza Sonvarsha, Thana No. 80, Anchal Cheriyabariarpur, Sub-Division Manjhaul, District Begusarai, comprised in Khata Nos. 90 and 168, Khesra Nos. 448, 501, 497, 502, 518,

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503/618 and 911, until final adjudication of the present writ petition by this Hon'ble Court.

(viii) for any other relief/reliefs for which the petitioner is found entitled to in the facts and circumstances of the present case."

3. After some argument, learned counsel for the petitioner submits that he shall be approaching the concerned Appellate Authority against the order in question.

4. Learned State counsel has no objection.

5. In that background, the writ petition is disposed of allowing the petitioner to approach the concerned Appellate Authority in next four weeks and if such petition is preferred, the concerned Appellate Authority shall be taking up the matter and after noticing/hearing the parties, passing a reasoned order in accordance with law, at an earliest.

6. I.A. if any, also stands disposed of.

(Rajiv Roy, J)

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